Gmail **Brendan Ngwa Nforbi <bnn.cdl@gmail.com>**

Newanforbi v. HOPE re Meet and Confer 3:26-cv-07504 (N.D. Cal.)

3 messages

Blaze Van Dine <blaze@sims-law.net> Thu, Sep 3, 2026 at 2:40 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Eric Martinez <emartinez@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Good afternoon Mr. Newanforbi,

I am writing to request to meet and confer prior to moving to dismiss the complaint filed in this action pursuant to Federal Rule of Civil Procedure 12(b)(6). The complaint alleges that Defendants Hope and Shannon Smith have implemented and maintained a blanket policy under which no parolee can ever be found to have completed Hope's sex offender management program prior to discharge from parole. The complaint further alleges that Defendants have submitted false reports to CDCR, recommended you remain in Hope's program, and that a Hope employee made retaliatory statements after you complained about Hope's practices. Based on these allegations, the complaint alleges five claims: (1) 42 U.S.C. § 1983-Individual Capacity; (2) 42 U.S.C. § 1983-Monell Liability; (3) California Civil Code Section 52.1 (Bane Act); (4) Fraud and Negligent Misrepresentation; and (5) 18 U.S.C. Section 1962(c)-(d) (RICO).

These claims are subject to dismissal for several reasons. First, prior to commencing this case in the Northern District of California, you filed an action in state court that was based on the same factual allegations. Because the state court action was resolved on the merits and in Defendants' favor, you are precluded from litigating each of the complaint's claims under the doctrine of res judicata (also referred to as preclusion).

Additionally, the complaint's factual allegations are insufficient to state a claim for relief. In that regard, the complaint fails to state a section 1983 claim because it does not establish that Defendants were state actors. The First Amended retaliation claim is also deficient because the allegations do not demonstrate that Defendants' actions would "chill a person of ordinary firmness" from continuing to engage in protective activity or that there was any intent to chill speech. *Az. Students' Ass. v. Ariz. Bd. of Regents*, 824 F.3d 858, 867 (9th Cir. 2016). The complaint's allegations also fail to state a due process claim because it does not sufficiently allege a deprivation of a liberty interest or an absence of procedural safeguards. *Kildare v. Saenz*, 325 F.3d 1078, 1085 (9th Cir. 2003). With respect to the Bane Act claim, the allegations are insufficient to establish that Defendants interfered with a constitutional or statutory right by threat, intimidation, or coercion. Cal. Civ. Code § 52.1. The complaint also fails to state a claim for either fraud or negligent misrepresentation because it does not allege justifiable reliance or an intent to defraud or induce reliance. *See DZ Reserve v. Meta Platforms, Inc.*, 96 F.4th 1223, 1233 (9th Cir. 2024*); Zetz v. Boston Scientific Corp.*, 398 F. Supp. 3d 700, 713 (E.D. Cal. 2019). Lastly, the complaint's allegations are insufficient to state a civil RICO claim. The complaint provides only conclusory allegations related to the alleged predicate acts—mail fraud, wire fraud, and obstruction—without providing the specificity required by Rule 8 and Rule 9(b). *See Schreiber Distrib. Co. v. Serv-Well Furniture Co.*, 806 F.2d 1393, 1400-01 (9th Cir. 2004).

Given these deficiencies, I intend to file a motion to dismiss the complaint. Please respond by agreeing to dismiss this action or provide available dates to meet and confer on or before **September 10, 2026.** Thank you in advance for your cooperation.

Blaze Van Dine

Attorney at Law

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Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Thu, Sep 3, 2026 at 3:49 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Eric Martinez <emartinez@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Blaze,

Thank you for your letter. I am available to meet and confer and propose any of the following:

· Wednesday, September 9 — 9:00 a.m. to 4:00 p.m. Pacific

· Thursday, September 10 — before 12:00 p.m. or after 1:30 p.m. Pacific

· Monday, September 14 — 9:00 a.m. to 4:00 p.m. Pacific

Monday, September 7 is the Labor Day holiday, so the nearest Monday I can offer is the 14th. I recognize that date falls just outside the window in your letter and offer it only in case it is more convenient for you; the first two dates are within it. I can accommodate a telephone or video conference at your convenience. Please let me know which you prefer and I will confirm.

I do not agree to dismiss this action.

Before we confer, I want to correct two factual premises in your letter so that we are working from the same record.

First, the state court action was not resolved on the merits. The demurrer in Newanforbi v. Palacios, San Joaquin County Superior Court No. STK-CV-UF-2026-0001032, was sustained on a single, expressly jurisdictional ground. The Minute Order of July 15, 2026 (Hon. George J. Abdallah, Jr.) affirms the tentative ruling and states the court's reasoning in full:

"The court agrees with Defendants' analysis and the authorities cited in their Motion and Reply that exhaustion of administrative remedies herein is a jurisdictional requirement to the filing of Plaintiff's FAC. The court finds Plaintiff failed

to meet this jurisdictional requirement prior to the filing of his FAC. Therefore, Defendants' Demurrer is GRANTED WITHOUT LEAVE TO AMEND."

The court identified no other ground. I attach the July 15, 2026 Minute Order and the tentative ruling it affirmed. I am aware that the formal order signed that same date — the [PROPOSED] order prepared and submitted by your office — recites a broader ground. The Minute Order reflects what the court actually decided.

This is not a new position. Plaintiff filed the state court decision in this action on July 30, 2026 (Dkt. 9), together with a notice explaining that the state dismissal rested on exhaustion rather than the merits.

Second, Shannon Smith was not a party to the state court action. The defendants there were Katie Palacios and the HOPE entity. Your letter asserts that preclusion bars each of the complaint's claims without addressing that.

I am otherwise prepared to discuss the balance of the issues raised in your letter at the conference, and I am willing to discuss the responsive pleading date at that time if you wish to raise it.

Nothing in this message waives any right, claim, argument, or objection, all of which are expressly reserved.

Regards,

Brendan
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2 attachments

Tentative Ruling on Demurrer (San Joaquin Sup Ct, Jul 10 2026).pdf
42K

Minute Order - Demurrer Sustained WOLA (San Joaquin Sup Ct, Jul 15 2026).pdf
45K

Blaze Van Dine <blaze@sims-law.net> Sun, Sep 6, 2026 at 11:09 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Eric Martinez <emartinez@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Let's do Thursday at 2pm. I'll follow with a link.

Blaze Van Dine
Attorney at Law

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